Montgomery County District Court

Cause No. 2023-CV-0005

Kristi Moreno, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 2, 2023
Plaintiff's counsel:	Stacy Jones, Morris & Miller LLP

Parties

Plaintiff Kristi Moreno is an individual residing in Texas who was injured in the collision described below. Defendant is an automobile insurance compnay autohrized to write policies in the State of Texas, which issued the liability policy covering the at-fault driver involved in the collision.

Facts

On January 8, 2023, Plaintiff was lawfully parked in a designated space in a retail parking lot in Sugar Land, Texas. While Plaintiff was stationary, a vehicle operated by the insured driver backed out of an adjacent space without first checking for traffic and struck the driver's side of Plaintiff's vehicle with considerable force. The impact pushed Plaintiff's vehicle into the vehicle parked beside it. Plaintiff's head struck the window frame and headrest during the collision. Plaintiff exited the vehicle with a headache, dizziness, and confusion and was transported by ambulance to a local emergency department, where a physician diagnosed a concussion. Plaintiff promptly reported the accident to Defendant and submitted a claim under the insured driver's liability coverage.

Negligence

The insured driver owed a duty to exercise ordinary care when operating a motor vehicle, including maintaining a proper lookout and yielding to vehicles and pedestrians when reversing. The insured driver breached that duty by backing without checking surroundings and by failing to keep the vehicle under reasonable control. Defendant, as the liability insurer of the at-fault driver, is responsible for the damages its insured caused, subject to the limits of the policy and the terms of Texas law.

Damages

As a direct result of the collision, Plaintiff has suffered a concussion, along with physical pain, cognitive difficulty, medical expenses, lost wages, and mental anguish. Plaintiff continues to require treatment and has been unable to work for a substantial period. Plaintiff seeks compensatoin in the amount of $190,000.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff may be entitled under Texas law.